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LEGISLATION - Assembly passes legislation to strengthen hate crime protections in California

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Last week, the California State Assembly passed legislation that aims to significantly strengthen California's response to the recent surge in hate crimes and hate-motivated violence. Authored by Assemblymember Jesse Gabriel (D-Woodland Hills), Assembly Bill (AB) 57 would implement specific recommendations from the State Auditor to enable law enforcement to better prevent, respond to, and document hate crimes. The measure passed the State Assembly 77-0 with bipartisan support.

The Assembly's action on AB 57 follows a recent wave of hate-motivated violence in the U.S., which has prompted fear and concern in many vulnerable communities, including the Asian Pacific Islander (API) and Jewish communities. Notably, hate crimes targeting Asian Americans in America's largest cities have increased 164 percent in the past year according to a new study. The Anti-Defamation League has similarly reported a surge of anti-Jewish incidents in recent weeks, which has included violent attacks in Los Angeles and other major urban areas.

"The recent violence against the Asian American and Jewish communities is unacceptable and demands a firm response from every level of government," said Assemblymember Jesse Gabriel. "At this moment, when so many in our state are feeling vulnerable, we must do more to protect those who are targeted by hate. Our legislation will significantly strengthen law enforcement training and coordination to ensure that California is better prepared to address hate crimes and protect vulnerable communities."

AB 57 is part of a package of bills that aims to address the recent surge in hate crimes and violent extremism throughout the United States. The legislation builds on specific recommendations from the California State Auditor, who found in a 2018 audit that law enforcement agencies in California routinely failed to adequately identify, report, or respond to hate crimes. The audit concluded that inadequate policies and lack of oversight by the California Department of Justice contributed to a systemic under-reporting of hate crimes across the state.

According to the Los Angeles Police Department, hate crimes in the City of Los Angeles increased 40% from 2016 to 2019. Even more concerning is that data collected by the U.S. Department of Justice suggests that hate crimes occur 24 to 28 times more frequently than they are reported.

AB 57 is supported by a diverse coalition of prominent civil rights organizations, including Equality California, the Asian Law Alliance, the Anti-Defamation League (ADL), and the Jewish Public Affairs Committee of California (JPAC), and is a priority bill for the California Legislative Jewish Caucus.

"More than 70 percent of Asian Americans in California live in fear of racially motivated violence and hate crimes," said Richard Konda, Executive Director of the Asian Law Alliance. "Police training and law enforcement agency policies to guide officers are urgently needed to protect us, and all Californians. We thank Assemblyman Gabriel for this step forward."

"With our long track record of advocacy in Sacramento to address hate crimes, JPAC is proud to support the passage of Assemblymember Gabriel's Hate Crime Prevention and Reporting Act Bill," said Allison Gingold, Chair of Jewish Public Affairs Committee. "This critical legislation will significantly impact the rise in hate crimes and strengthen our State's response to effectively combat it."

AB 57 is headed to the Senate and is expected to be heard in policy committees in the coming weeks.

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